



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

July 5, 2022

Memorandum for: Deputy Commissioner, Trials

Re: **Sergeant Philip Wong**
Tax Registry No. 940869
Fleet Services Division
Disciplinary Case No. 2021-23237

The above named member of the service appeared before Assistant Deputy Commissioner Paul M. Gamble on March 22, 2022 and was charged with the following:

DISCIPLINARY CASE NO. 2021-23237

1. Said Sergeant Phillip Wong, while assigned to Transit District 3, on or about October 4, 2019, at about 0430 hours, inside the Transit District 3 stationhouse, wrongfully and without just cause used excessive force against another person, a prisoner, identity known to the Department, resulting in said other person suffering injury.

P.G. 221-01

**FORCE GUIDELINES
TACTICAL OPERATIONS
USE OF FORCE
TACTICAL OPERATIONS**

P.G. 221-02

2. Said Sergeant Philip Wong, while assigned to Transit District 3, on or about April 29, 2020, at about 0630 hours, inside the 96th Street subway station, New York County, wrongfully and without just cause used excessive force against another person, a prisoner, identity known to the Department.

P.G. 221-01

**FORCE GUIDELINES
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P.G. 221-02

In a Memorandum dated April 22, 2022, Assistant Deputy Commissioner Paul M. Gamble found Sergeant Philip Wong guilty of both Specifications, after he pled guilty to Specification Nos. 1 and 2 in Disciplinary Case No. 2021-23237. Having read the Memorandum and analyzed the facts of this matter, I approve of the findings, and agree that Sergeant Wong be separated from the Department.

Having considered the totality of the circumstances and issues concerning the misconduct for which Sergeant Wong has been found guilty, I direct that separation from the Department be implemented as follows.

In lieu of dismissal, an *immediate* post-trial settlement agreement be implemented with Sergeant Wong in which he shall forfeit thirty (30) suspension days to be served, forfeit all time and leave balances, be placed on (1) year dismissal probation, and immediately file for vested interest retirement.

If Sergeant Wong does not agree to the terms of this vested interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented ***IMMEDIATELY***.

A handwritten signature in black ink, appearing to read 'K. Sewell', is positioned above the printed name of the Police Commissioner.

Keechant L. Sewell
Police Commissioner



POLICE DEPARTMENT

April 22, 2022

-----X
In the Matter of the Charges and Specifications :
- against - :
Sergeant Phillip Wong :
Tax Registry No. 940869 :
Fleet Services Division :
-----X

Case No.
2021-23237

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Andrew Quinn, Esq.
The Quinn Law Firm
399 Knollwood Road, Suite 220
White Plains, NY 10603

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

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REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 22, 2022. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find that mitigation is warranted; accordingly, I recommend a penalty of Forced Separation from this Department.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent acknowledged that on March 2, 2022, in New York County Supreme Court, Criminal Term, he pled guilty to one count of Assault in the Third Degree (Penal Law § 120.00[1]), a Class "A" misdemeanor, and one count of Attempted Assault in the Third Degree (Penal Law § 110/120.00[1]), a Class "B" misdemeanor (Dept. Ex. 1).

Respondent testified that on October 4, 2019, he was part of a team of officers who transported an individual to Transit District 3 after the individual was placed under arrest at a subway station (T. 46-47). This individual had been engaged in a physical altercation with police before being placed under arrest, resulting in three police officers being taken to the hospital for treatment (T. 46).

As the suspect was placed in a holding cell, he kicked the cell door as one police officer attempted to close and lock it (Dept. Ex. 2). The suspect was handcuffed at the time (*Id.*). As the police officer tried to lock the cell door again, the suspect began spitting at him and Respondent, who was standing near the cell (*Id.*; T. 31-32, 48-49). Respondent entered the holding cell and struck the suspect twice to subdue him (*Id.*; T. 50). Three other police officers then entered the cell: while they attempted to immobilize the subject by placing him in a seated position with his head between his knees, Respondent struck the subject again (Dept. Ex. 2). Respondent did not recall how many times he swung at the suspect but admitted that he hit him once (T. 50).

Respondent admitted that while the Patrol Guide authorizes the use of force to persuade a suspect to cease active resistance, he was wrong to have struck a handcuffed prisoner (T. 46-47, 50, 73-74). The parties stipulated, and Respondent admitted, that the subject suffered a laceration to the area around his eye, which required suturing (T. 8, 50). Respondent conceded that because the suspect was handcuffed, he had no way to protect himself from Respondent's blows (T. 60).

Respondent testified further that on April 29, 2020, he and his partner, while conducting regular patrol inside the 96th Street subway station, arrested an individual fighting inside a subway car that was stopped at the station (T. 51-52). As they escorted the suspect to the

mezzanine level, he struggled, although handcuffed (Dept. Ex. 3; T. 52). The suspect called Respondent, “You Chinese fuck,” and “faggot” (T. 71). The suspect then began taunting Respondent by asking his partner, who was female, why she was “with this Chinese guy,” and if she “want[ed] to be with a real man” (T. 71). The suspect also made moaning sounds simulating sexual activity (*Id.*).

According to Respondent, as they approached the turnstiles, the suspect claimed his handcuffs hurt, then turned toward Respondent and kicked him in his stomach (T. 71-73). Respondent began struggling with the suspect before bringing him to the ground (T. 52, 74-75). Respondent testified that although other police officers came to assist, he directed them to stay away to avoid them being kicked (T. 75-76). Respondent admitted that he climbed onto the suspect’s back, as he lay face down, and placed his knees on the suspect’s back (T. 61-62). The suspect stated that he could not breathe several times; Respondent admitted that he punched the individual in his face (T. 52, 53, 63-65, 76).

On cross-examination, Respondent denied that he bounced up and down on the suspect’s back with his knees; he testified that because the suspect continued moving around, he was required to change position to maintain his posture on the suspect’s back (T. 63).

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent’s employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 9, 2006, has no formal disciplinary record. However, Respondent pled guilty to Assault in the Third Degree, a Class “A” misdemeanor. The presumptive penalty for conviction of a misdemeanor assault, while on duty, is termination; the mitigated penalty is forced separation.

Respondent admitted to punching a handcuffed prisoner to prevent him from spitting on other officers and himself, causing a laceration near the prisoner’s eye. Respondent further admitted to kneeling on a handcuffed suspect’s back as he attempted to subdue him.

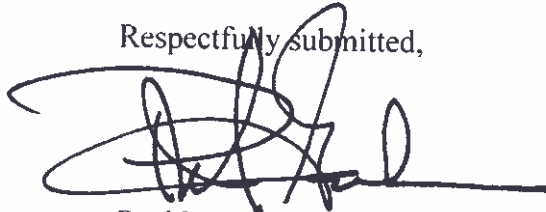
Excessive force against a handcuffed prisoner is an aggravating factor; this factor is present in both instances of misconduct to which Respondent pleaded guilty. Respondent’s rank is also an aggravating factor, as he was a supervisor on the scene of each incident. Finally, the adverse finding in the Supreme Court represented by Respondent’s guilty plea is aggravating.

On balance, I find that Respondent’s acceptance of responsibility in the instant proceeding is a mitigating factor. The physical actions taken by the subject in each instance are also possible mitigating factors. In the October 4, 2019, incident, the subject spat at Respondent and other police officers from inside a holding cell. I find that the subject’s spitting at police officers constituted active resistance. In the April 29, 2020, incident, the subject kicked Respondent in the stomach while being escorted through the station’s mezzanine on the way to street level. The subject then continued kicking at Respondent and his partner after Respondent brought him to the ground. I find the subject’s actions in this incident also constituted active resistance.

While Respondent’s retention in this Department is an impossibility with a criminal conviction, the character of his departure is in issue. Based upon the totality of the record,

especially Respondent's previously unblemished career, I find that mitigation is warranted. I therefore recommend that Respondent be separated from the New York City Police Department.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Paul M. Gamble', with a long horizontal line extending to the right.

Paul M. Gamble
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
SERGEANT PHILLIP WONG
TAX REGISTRY NO. 940869
DISCIPLINARY CASE NO. 2021-23237

Respondent was appointed to the Department on January 9, 2006. On his three most recent annual performance evaluations, he twice received 3.5 overall ratings of “Highly Competent/Competent” for 2018 and 2020 and received a 4.0 rating of “Highly Competent” for 2019. He has been awarded one medal for Excellent Police Duty.

Respondent has no disciplinary record. In connection with the instant matter, he was suspended from July 22 to August 21, 2021; he was also placed on Level 2 Discipline Monitoring on January 25, 2022. Monitoring remains ongoing.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials